



PUBLIC COMMENT

Comment in Response to Question C

Re: Docket No. FAA-2026-8614; Notice No. 26-11; RIN 2120-AM51

August 30, 2026

Question C asks how the thirteen laws identified for waiver have applied to reduce legally cognizable environmental harm in launch and reentry contexts. In common-sense terms: what harm did the additional licensing layer reduce? The answer matters because America is navigating a new ocean of transportation and commerce. A nation entering new waters needs charts - but charts that identify actual reefs, not imaginary shoals copied forward from an inherited checklist.

I support finalizing proposed § 400.3. Congress authorized the Secretary, after the required consultation, to determine by regulation that a requirement is unnecessary to protect the interests identified in 51 U.S.C. § 50905(b)(2)(C). The Administration has directed the Department, consistently with law, to use every available authority to eliminate or expedite environmental review and other licensing obstacles.[1] The Age of Common Sense should mean matching regulatory procedure to demonstrated risks and protections.

I grew up in the woods of East Texas. I do not disregard land, wildlife, clean water, quiet, or the concerns of nearby communities. Those communities should be proactive members of this new age, not an afterthought to it. They deserve honest answers about noise, emissions, debris, habitat, water, cultural resources, and safety. Those same residents may also become participants in this new age - as workers, entrepreneurs, suppliers, educators, and local partners - and those who engage should have a meaningful opportunity to contribute materially to how the industry develops around them. At the same time, public agencies, applicants, and communities should not have to spend scarce time and money re-documenting an established absence when the relevant facts remain unchanged.

FAA'S OWN RECORDS ALREADY PROVIDE AN INITIAL ANSWER

Question C asks how these requirements have reduced legally cognizable environmental harm through commercial-space licensing. This comment proposes no new environmental study or demand that applicants recreate completed analysis. Using completed FAA records, Attachment A begins answering the question by identifying outcomes and commitments documented in those decisions.

Those records show at least three concrete outcomes:

- **Protection added.** At the SpaceX Texas launch site, historic-preservation review identified five affected historic properties and produced specific construction, utility, vibration, noise, and visual protections.[2] In the Dragon record, joint FAA/NASA Endangered Species Act consultation specified measures FAA's licensing record incorporated: observers, avoidance distances, reporting, vessel-speed limits, and spill response.[A2] Those are documented protections, and they belong on the chart.
- **Objective screen completed, with no additional protective action required.** The same Dragon record produced a different result under the Clean Air Act. FAA found no potential impact in a nonattainment or maintenance area and no need for a General Conformity

determination; the record identifies no conformity-based mitigation or operational change.[A2]

- **Prior analysis made reusable.** At the Shuttle Landing Facility, FAA completed a bounded review of an existing horizontal-return site and expressly contemplated that later vehicle-specific reviews could build from that record rather than recreate it.[A3]

These are not questions being handed back to FAA. They are initial answers drawn from FAA decisions already completed. They also explain, in ordinary terms, what *no demonstrated incremental protection* means. For a defined site and operation, the phrase means that applying the requirement through FAA licensing produced no additional protective result: it uncovered no new risk or resource, changed no operation, required no mitigation or monitoring, and supplied no unique condition. It does not mean that the underlying law has no value or that it could not protect a different place or operation.

FAA therefore does not need to invent a new metric or order applicants to generate new environmental work. The agency's completed assessments, findings, consultations, mitigation agreements, license conditions, and determinations that no further action was required are the data. Attachment A organizes an initial set of those outcomes and identifies the underlying records and page references. After consultation, if the record supplies a reasoned basis, the Secretary, acting through delegated FAA authority, can make the statutory finding for a defined class.

The Sierra-style matrix comes after that finding. It does not ask an applicant to answer Question C again. It is only a short eligibility certification: the applicant identifies the class FAA has already found eligible, states the site and operational facts showing that the proposed operation fits within that class, and confirms that those facts have not materially changed. The following sections explain that sequence and the safeguards that accompany it.

SIERRA VISTA PROVIDES BOTH EVIDENCE AND A WORKABLE TEMPLATE

The City of Sierra Vista's comment supplies a concrete application of this approach. The City describes a tightly bounded proposal at an existing inland airfield: a 12,001-foot runway; no construction or ground disturbance; no more than ten reentries annually; an unpowered, subsonic horizontal landing; no fuel use during entry, descent, or landing; no terminal-area sonic boom; and a contained landing-risk footprint.[3]

The City then does something especially useful: it places the thirteen provisions into a short matrix. For each provision, the matrix states the nexus to operations at the airfield and the environmental harm demonstrably avoided by applying the provision. Six provisions - the Coastal Zone Management Act, Marine Mammal Protection Act, Magnuson-Stevens Act, National Marine Sanctuaries Act, Rivers and Harbors Act, and Wild and Scenic Rivers Act - are reported to have no geographic or factual nexus. For the remaining provisions, the City reports no identified significant environmental impact, mitigation requirement, or operational change.

The City reports roughly \$700,000 in environmental work within a \$1.52 million municipal program and says its proposed-action description had been pending approximately nine months without substantive action. The City does not break down either figure by provision, and cost and delay alone do not answer Question C. They matter because the City pairs them with its report of no identified additional protection, mitigation, or operational change.

Sierra Vista's matrix is also a prototype for administering relief: decisive facts on paper without recreating an environmental assessment. Sierra Vista should be, at minimum, an initial implementation candidate. If FAA adopts a narrower operational class, the sensible place to begin is with unpowered reentries ending in subsonic horizontal landings to existing inland airport infrastructure, with no construction and limited cadence.

DEFINE THE CLASS; LET THE APPLICANT CERTIFY THE FACTS

FAA can make that prototype a quick path without letting an applicant waive federal law: the applicant certifies the facts; FAA makes the legal determination.

After consultation, the Secretary, acting through delegated FAA authority, should make the final § 400.3 non-necessity finding. If FAA chooses a narrower operational class, its objective boundaries should appear in the regulation; guidance can supply application instructions.

An applicant seeking expedited treatment should be allowed to file an optional, certified Sierra-style matrix identifying:

What the law protects and when it applies: identify the resource, activity, or public interest the law covers and the fact that normally triggers it.

What is true at this site: identify the concrete fact about the location or operation that makes the law relevant or shows that it has no practical connection.

What the FAA licensing layer actually added: state whether it uncovered new information, prevented harm, required mitigation or monitoring, imposed a condition, or changed the operation.

What protection already exists elsewhere: identify any enforceable permit, rule, agreement, or other authority that addresses the same risk.

What would require a new answer: identify any new construction, change in vehicle, increase in cadence, change in route or footprint, incident, newly identified resource, or other material fact that would make the certification stale.

The matrix should be a screen, not a miniature environmental assessment. An operator at an inland Arizona runway should be able to explain in a few lines why its operation has no factual or geographic connection to the resource protected by a marine or coastal provision. Supporting surveys, maps, and analyses should remain in the applicant's files unless FAA has a reason to request them.

FAA should ordinarily rely on a facially complete certification without independently rebuilding every negative. Existing rules require applicants to certify that their applications are true, complete, and accurate and to correct material inaccuracies while an application is pending.[4] Reproducing the applicant's analysis would recreate the layer the waiver is intended to remove. A paperwork waiver that demands a second environmental review to prove entitlement is not much of a waiver.

Routine reliance is not blind reliance. FAA makes the eligibility determination and considers material contrary information. It may make a targeted request when a representation is internally inconsistent, conflicts with known facts, or lacks understandable support. But reliance - not an unspoken requirement that every negative be independently proved again - should be the ordinary rule.

This is front-end simplicity joined to back-end accountability. The final rule should require evidence retention and material-change reporting, including new construction; changes in vehicle, propulsion, fuel, cadence, trajectory, noise, emissions, or footprint; a newly identified protected resource; an incident inconsistent with the certified facts; or the loss of a safeguard on which the matrix relied.

If an applicant cannot support a material representation when FAA properly requests that support, expedited reliance should pause until it is supplied. A material change placing the operation outside the class should require a new eligibility determination or appropriate license treatment. When the legal predicates are met, existing law still authorizes investigation, civil penalties, and license modification, suspension, or revocation for a knowing material falsehood or violation.[5] No new

enforcement code is needed; a simple filing carries a serious duty to tell the truth and preserve the proof.

The waiver would not erase independently applicable law. State, federal-land, military, hazardous-material, permit, and agreement obligations remain enforceable except where displaced by the final rule, preempted under Chapter 509, or superseded by another controlling authority. Another safeguard counts as duplicative only if it protects the same resource and harm pathway with comparable scope, authority, and remedy.

This respects affected communities. They are not protected by the number of documents the government produces, but by accurate risk identification, necessary changes, visible facts, and enforcement. A concise public matrix may explain applicability more clearly than repeated analysis and give residents, Tribes, and agencies a direct statement to challenge with material contrary facts.

REQUESTED ACTION

I therefore ask FAA to finalize proposed § 400.3 substantially as written. If FAA narrows or phases implementation, it should do so in direct terms: define the eligible class; accept an optional, certified Sierra-style thirteen-law matrix; ordinarily rely on the certified facts without routine independent re-verification; require the applicant to retain its supporting evidence and report material changes; and use targeted review or existing enforcement when the record provides a reason to do so. Sierra Vista should be an initial candidate for any phased or class-based implementation. Pending applications leading to post-effective-date issuance or modification of covered licenses or permits should receive the rule's benefit.

This gives FAA a practical "how to" grounded in the evidence Question C seeks. Where a requirement found a real resource, changed conduct, or created an enforceable protection, keep that reef on the chart. Where it encountered no relevant resource, identified no legally cognizable harm, changed no operation, and supplied no demonstrated incremental protection, remove that unnecessary licensing layer while the certified facts remain true.

Attachment A follows and provides the FAA records, the Sierra Vista comparison, and the methodological limits supporting these initial answers.

America's new ocean does not call for throwing environmental charts overboard. It calls for better charts: precise enough to identify actual reefs, honest enough to remove imaginary shoals, and adaptable enough to change when the waters change. That is the Age of Common Sense - not less protection, but protection made more focused, more credible, and more worthy of public trust.

Respectfully submitted,

Joshua McElwee
Founder, Mulapin Research Group
Fort Myers, Florida
mulapin.org

SOURCES

- [1] Waiver of Specified Statutory Requirements for Commercial Space Launch and Reentry Actions, 91 Fed. Reg. 47,997, 47,999, 48,001-02 (July 30, 2026); 51 U.S.C. § 50905(b)(2)(C); Executive Order 14335 § 3(a), 90 Fed. Reg. 40,219, 40,219 (Aug. 19, 2025).
- [2] FAA, Memorandum of Agreement Regarding the SpaceX Texas Launch Site (2015). See pp. 1-5.
- [3] City of Sierra Vista, Comment FAA-2026-8614-0634, Attachment 1. See printed pp. 1, 3-5.
- [4] **14 C.F.R. §§** 413.7(c), 413.17(a).
- [5] **51 U.S.C. §§** 50908(b)-(c), 50917(a)-(c); **14 C.F.R. §§** 402.1, 402.3, 402.5.

FAA Records Demonstrating the Incremental-Protection Test

Docket No. FAA-2026-8614 | Question C

Purpose. These selected FAA primary records illustrate how a site-specific inquiry can produce different answers. They do not constitute a statistical sample or support a claim that any of the thirteen requirements is universally unnecessary. For each record, this attachment identifies the fact that triggered or ended the inquiry, the outcome or commitment documented in the FAA licensing record, and the circumstances in which later or additional review would be required.

1. PROTECTION ADDED: SPACEX TEXAS LAUNCH SITE / NHPA § 106

FAA's 2015 agreement states that construction, operation, and maintenance of the SpaceX Texas launch site would adversely affect five historic properties. FAA agreed to ensure that SpaceX would manage, fund, and implement measures including a protective construction barrier, underground utility lines, compatible exterior colors, construction-noise controls, east-southeast flame-duct orientation, and vibration monitoring of a historic marker. The agreement documents project commitments; it does not by itself establish how effectively each measure was later implemented.[A1]

Question C result: Preserve review where an identified resource and harm pathway produce concrete commitments that FAA agreed to ensure.

2. OBJECTIVE SCREEN COMPLETED: DRAGON GULF REENTRY / CLEAN AIR ACT § 176(C)

In its 2018 Dragon Gulf reentry assessment, FAA examined air emissions from up to six annual recovery events. FAA found no potential impact in a nonattainment or maintenance area and stated that no General Conformity determination was required. For scale, it separately estimated vessel and helicopter emissions. Among the six pollutants compared in Table 4.1-2, the highest estimated annual total was 55.03 tons of nitrogen oxides, below the 100-ton benchmark the assessment used for scale.[A2]

Question C result: Complete the objective geographic-applicability screen and stop when General Conformity is not triggered; any emissions comparison may still document scale. The result does not extend to operations in an implicated area or with materially different emissions.

3. PROTECTION DOCUMENTED AND REVIEW REVISITED: DRAGON GULF REENTRY / ESA § 7

The same Dragon record documented a different answer under the Endangered Species Act. The 2016 joint FAA/NASA consultation specified measures for Dragon recovery, and FAA's licensing record incorporated them: dedicated observers, interaction reporting, species-avoidance distances, conditional vessel-speed limits, and spill-response procedures. The 2016 analysis assumed all parachutes would be recovered and did not assess sonic-boom effects on the water. FAA conducted additional consultation in 2017 to address those facts and Pacific operations. While discretionary federal involvement or control remained, NMFS required reinitiation if new information revealed effects not previously considered, the action was modified to cause an effect not previously considered, or a newly listed species or newly designated critical habitat might be affected.[A2]

Question C result: Preserve concrete safeguards and revisit a prior answer when material facts move outside the assessed envelope.

4. BOUNDED HORIZONTAL-RETURN RECORD: SPACE FLORIDA SHUTTLE LANDING FACILITY

FAA's 2021 programmatic assessment evaluated the use of an existing runway for horizontal landings by reentry vehicles, using Dream Chaser parameters as the conceptual basis. It assumed no ground disturbance and analyzed a maximum scenario of six reentries in one year (four daytime and two nighttime), with no more than seventeen over the five-year study period. FAA modeled an approximately 280-square-mile sonic-boom study area, a 1.1-psf peak overpressure, and an annual CDNL of 41.2 dBC for the six-event scenario. It examined twelve historic resources, obtained State Historic Preservation Officer concurrence in a no-adverse-effect finding, and stated that each future operator would prepare a separate vehicle-specific environmental document tiered from the site record.[A3]

Question C result: Tier from the bounded record: incorporate aligned analyses by reference, and use the required operator-specific document to address vehicle-specific facts and deviations.

SIERRA VISTA COMPARISON AND ADMINISTRATIVE MODEL

The City of Sierra Vista offers an administrative model that could record these distinctions. It reports an existing 12,001-foot inland joint-use runway, no construction, no more than ten annual reentries of an unpowered lifting-body spaceplane that glides subsonically to a horizontal landing, no fuel use during entry, descent, or landing, and no terminal-area sonic boom. Its matrix reports that six provisions have no geographic or factual nexus; for the remaining provisions, it reports no significant impact, mitigation, or operational change. Those are City-reported claims, not final FAA findings. The City does not break down either its approximate \$700,000 cost or its nine-month proposed-action timeline by requirement.[A4]

Question C result: Use a certified version of this format to distinguish among three outcomes: protection was added or documented, an objective screen was completed, or prior analysis may be incorporated by reference. Preserve the operator-specific review that remains legally required and focus it on material differences.

METHODOLOGICAL LIMITS

These examples are illustrative, not exhaustive or statistical. The absence of mitigation alone does not prove the absence of protection; the existing record must also show whether the requirement produced information, avoidance, monitoring, a condition, or an operational change. Prior analysis may be incorporated by reference while its controlling facts remain true and its safeguards remain in place; any operator-specific document or determination that remains legally required must still be completed. Independently applicable legal obligations remain in force to the extent they are not displaced by the final rule, preempted under Chapter 509, or superseded by another controlling authority.

PRIMARY RECORDS

[A1] FAA, SpaceX Texas Launch Site Memorandum of Agreement (executed Feb. 11, 2015), pp. 1-6, 17.

[A2] FAA, Final Environmental Assessment and FONSI for Landing the Dragon Spacecraft in the Gulf of Mexico (Aug. 2018), Final EA pp. 14-15, 32-34, 38-39; 2016 NMFS concurrence pp. 6-7; 2017 NMFS concurrence pp. 2-3, 9-10, 27.

[A3] FAA, Final Programmatic Environmental Assessment and FONSI for the Shuttle Landing Facility Reentry Site Operator License (Jan. 12, 2021), Final PEA pp. 1-1, 1-5, 2-1, 2-3, 3-1, 3-10, 4-6 to 4-8; Appendix C §§ C.1.3-C.1.5 and Table C-1.

[A4] City of Sierra Vista, Comment FAA-2026-8614-0634, Attachment 1 (filed Aug. 20, 2026), printed pp. 1, 3-5.